

7.	2026-1578614 State Bar of California vs. Minnella	At the outset, the Court notes that it received via United States mail, addressed to the Court by name, an unsolicited ex parte communication essentially attesting to Respondent John Minnella’s good character. The Court directed the clerk not to file the unauthorized communication, and the Court did not consider it in ruling on the petition. The State Bar of California’s Petition for Assumption of Jurisdiction over the unauthorized law practice of Respondent John Minnella is granted. Business and Professions Code section 6125 prohibits a person from practicing law in California unless the person is an active licensee of the State Bar. Giving legal advice and preparing legal instruments, whether or not rendered in the course of litigation, constitutes the practice of law. (<i>State Bar of California v. Superior Court</i> (1929) 207 Cal. 323, 335.) A single such act is sufficient. (<i>People v. Ring</i> (1937) 26 Cal.App.2d Supp. 768, 770–771.) Business and Professions Code section 6126, subdivision (a), provides in relevant part: “Any person advertising or holding himself or herself out as practicing or entitled to practice law or otherwise practicing law who is not an active licensee of the State Bar, or otherwise authorized pursuant to statute or court rule to practice law in this state at the time of doing so, is guilty of a misdemeanor” An application under Business and Professions Code section 6126.3 must initially demonstrate probable cause to believe that the conduct described in section 6126, subdivision (a), has occurred and that the interests of a client or interested person or entity will be prejudiced if the proceeding is not maintained. (Bus. & Prof. Code, § 6126.3, subd. (c).) At the final hearing, however, the Court must find that the conduct described in section 6126, subdivision (a), has occurred and that the interests of a client or interested person or entity will be prejudiced if the proceeding is not maintained. If those findings are made, the Court may assume jurisdiction over the person’s practice. (Bus. & Prof. Code, § 6126.3, subd. (e).) The State Bar bears the burden of proving the facts necessary for final relief by a preponderance of the evidence. (Evid. Code, § 115.) The State Bar has met that burden. Respondent is not, and has never been, a licensee of the California State Bar. He is not registered or bonded as an immigration consultant with the California Secretary of State and does not work
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under the direction or supervision of a licensed California attorney. (Cruz Decl., ¶¶ 4–5, 18, Exs. 1–2.)

The evidence establishes that Respondent performed work for clients that included preparing and filing an I-130 family petition, preparing an asylum request, preparing DACA applications, preparing and filing responses to Requests for Evidence, and drafting a declaration intended to support an asylum application. (Cruz Decl., ¶¶ 7, 10–12, Exs. 4, 6–8.)

Respondent’s retainer agreement provided that a client’s matter would be handled as determined by Respondent’s “professional judgment” and that he would exercise that judgment according to his professional experience and knowledge, tactics and strategies, legality, ethics, the client’s best interests, and other considerations within Respondent’s sole discretion. (Cruz Decl., ¶ 8, Ex. 4.)

Respondent also admitted to Investigator Cruz that he evaluates his clients’ facts, provides clients with an analysis of their situations, and selects the forms he believes they require. Respondent characterized the advice he provides as based on “common knowledge.” (Cruz Decl., ¶ 19.) The characterization does not alter the nature of the conduct. Evaluating a client’s circumstances, selecting an immigration remedy or form, advising the client concerning that selection, and preparing documents requiring the exercise of legal judgment are not merely clerical services.

The evidence also shows that Respondent conducted his business at premises identified as the “Law Offices of Minnella, English & Wiksell.” (Cruz Decl., ¶ 17, Ex. 13.) Respondent maintained a website under the name Minnellalaw.com offering services in the areas of immigration, citizenship, visas, asylum and refugee matters, and deportation defense, while representing that he had provided such services for more than 40 years. (Cruz Decl., ¶ 22, Ex. 15.)

Respondent’s Facebook page under the name J.L. Minnella and Associates/Minnella Romano and Associates described the business as an “International Law Firm and Immigration Consultancy.” The page stated that Respondent was licensed to practice law in Nicaragua and certain reciprocal countries in Central and Latin America, but was not licensed in any United States jurisdiction. It further stated that, in the United States, Respondent handled immigration, citizenship, nationality, visa, and consular matters as an immigration consultancy. (Cruz Decl., ¶ 23, Ex. 16.)

Respondent’s disclosure that he was not licensed in the United States does not defeat the petition. Section 6126, subdivision (a),

	applies not only to a person who falsely holds himself out as entitled to practice law, but also to a person who “otherwise practic[es] law” without authorization. The evidence establishes that Respondent did the latter. Respondent does not rebut this showing with competent evidence. He submits no declaration denying Investigator Cruz’s account of his admissions, denying that he performed the identified services, or explaining how evaluating clients’ circumstances and selecting immigration forms and strategies constituted merely clerical assistance. Instead, the opposition principally challenges the scope and administration of the assumption of jurisdiction. Respondent’s reliance on <i>Benninghoff v. Superior Court</i> (2006) 136 Cal.App.4th 61 is unpersuasive. <i>Benninghoff</i> concerns legal activity affirmatively authorized by federal law. Respondent identifies no statute, regulation, federal admission, agency accreditation, or other federal authorization permitting him to represent persons in immigration matters. His license to practice law in Nicaragua does not, by itself, authorize him to practice United States immigration law in California. The Court therefore finds by a preponderance of the evidence that Respondent engaged in the unauthorized practice of law within the meaning of Business and Professions Code section 6126, subdivision (a). The Court further finds that the interests of Respondent’s clients will be prejudiced if this proceeding is not maintained. Respondent maintained immigration client files involving matters potentially subject to deadlines and other time-sensitive obligations. Those clients must be notified that Respondent is not authorized to practice law in California, advised that it may be in their best interests to obtain licensed counsel, and afforded an orderly means of recovering their files. An injunction alone would not accomplish the client-notification, deadline-protection, and file-return functions contemplated by section 6126.3, subdivision (e). The restriction against unlicensed practice also protects members of the public from being advised and represented by unqualified persons and protects the integrity of the legal process. (See <i>Russell v. Dopp</i> (1995) 36 Cal.App.4th 765, 773.) Respondent requests the return of personal materials unrelated to the affected practice. That request is reasonable, although Petitioner represents that any personal documents, foreign-law documents, personal mail, and other materials unrelated to the unauthorized practice were taken inadvertently and will be returned. The Court’s jurisdiction over Respondent’s files, records,
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and practice exists only for the limited purposes stated in section 6126.3. (Bus. & Prof. Code, § 6126.3, subd. (e).) Petitioner shall therefore use reasonable procedures to identify and promptly return materials that are plainly personal or otherwise unrelated to the affected practice. Either party may apply to the Court for further direction concerning any genuinely disputed category of property.

Respondent also objects that the interim order permits the deletion of electronic data. Petitioner represents that it did not confiscate any computers or storage devices from Respondent's business address and has no access to any cloud-based system belonging to Respondent. The issue therefore has no present practical application. Nevertheless, no electronic data shall be permanently erased or destroyed pursuant to the final order absent client authorization, written agreement of the parties, or further order of the Court.

Respondent's remaining requests for an itemized file-by-file inventory, supervised access to client files, a formal clawback procedure, and automatic in-camera review of disputed materials are not required by section 6126.3 and are not warranted on the present record. Section 6126.3, subdivision (f), requires any person examining the files to observe any applicable lawyer-client privilege and permits disclosure only to the extent reasonably necessary to accomplish the statute's purposes. That obligation remains in effect. Nothing in that provision, however, makes Respondent or his present counsel the holder of a client's privilege or establishes a right to continued access to client information used in the unauthorized practice of law.

Business and Professions Code section 6030 authorizes the State Bar to seek an injunction against a violation or threatened violation of Article 7 of the State Bar Act, commencing with section 6125, without an undertaking. Respondent's past conduct, his continuing insistence that the services he provided were permissible immigration consulting, and the nature and duration of his practice establish an adequate basis for prospective injunctive relief.

Accordingly, having made the findings required by Business and Professions Code section 6126.3, subdivision (e), the Court grants the petition and will issue permanent orders assuming jurisdiction over the unauthorized law practice of John Minnella, doing business as J.L. Minnella and Associates and Minnella Romano and Associates.

Respondent is permanently enjoined from advertising or holding himself out as entitled to practice law in California, or otherwise practicing law in California, unless he is an active licensee of the

		California State Bar or is otherwise authorized to perform the particular activity pursuant to statute or court rule. Petitioner shall submit a revised proposed final order consistent with this ruling and shall give notice.
8.	2019-1102209 McDonnell vs. Ford Motor Company	Order to Show Cause re: Dismissal on Settled Case Motion for Attorney Fees is off calendar pursuant to Notice of Withdrawal filed.
9.	2025-1516057 Eslami vs. Luna	Case Management Conference The general demurrer by Defendant Jessica Luna (“Luna”) to the First Amended Complaint (“Plaintiff”) filed by Plaintiff Naghi Eslami (“Plaintiff”) is sustained with leave to amend. The Court notes Luna demurred to the FAC and not individually to each cause of action. As such, if a demurrer is overruled as to any cause of action, then the demurrer to the entire FAC shall be overruled. (<i>See, Warren v. Atchison, T. & S. F. Ry. Co.</i> (1971) 19 Cal.App.3d 24, 36.) Plaintiff alleges five causes of action in Plaintiff’s FAC. Plaintiff did not allege sufficient facts to state each of the five causes of action. “The procedural requirements for claim presentation are prerequisites to litigation against a local public entity or employee thereof based not only on tort liability, but on any claim for ‘money or damages.’ (§ 905.) A cause of action that is subject to the statutory claim procedure must allege either that the plaintiff complied with the claims presentation requirement, or that a recognized exception or excuse for noncompliance exists. A plaintiff may allege compliance with the claims requirements by including a general allegation that he or she timely complied with the claims statute. (<i>Perez v. Golden Empire Transit Dist.</i> (2012) 209 Cal.App.4th 1228, 1236 [147 Cal.Rptr.3d 709].) If the plaintiff fails to include the necessary allegations, the complaint is subject to attack by demurrer. (<i>State of California v. Superior Court (Bodde)</i>, <i>supra</i>, 32 Cal.4th at p. 1239, 13 Cal.Rptr.3d 534, 90 P.3d 116.)” (<i>Gong v. City of Rosemead</i> (2014) 226 Cal.App.4th 363, 374.) “In order to comply with the claim presentation requirement, the facts alleged in a complaint filed in the trial court supporting a cause of action against a government employee, including the damages alleged to have been suffered by the claimant, must be